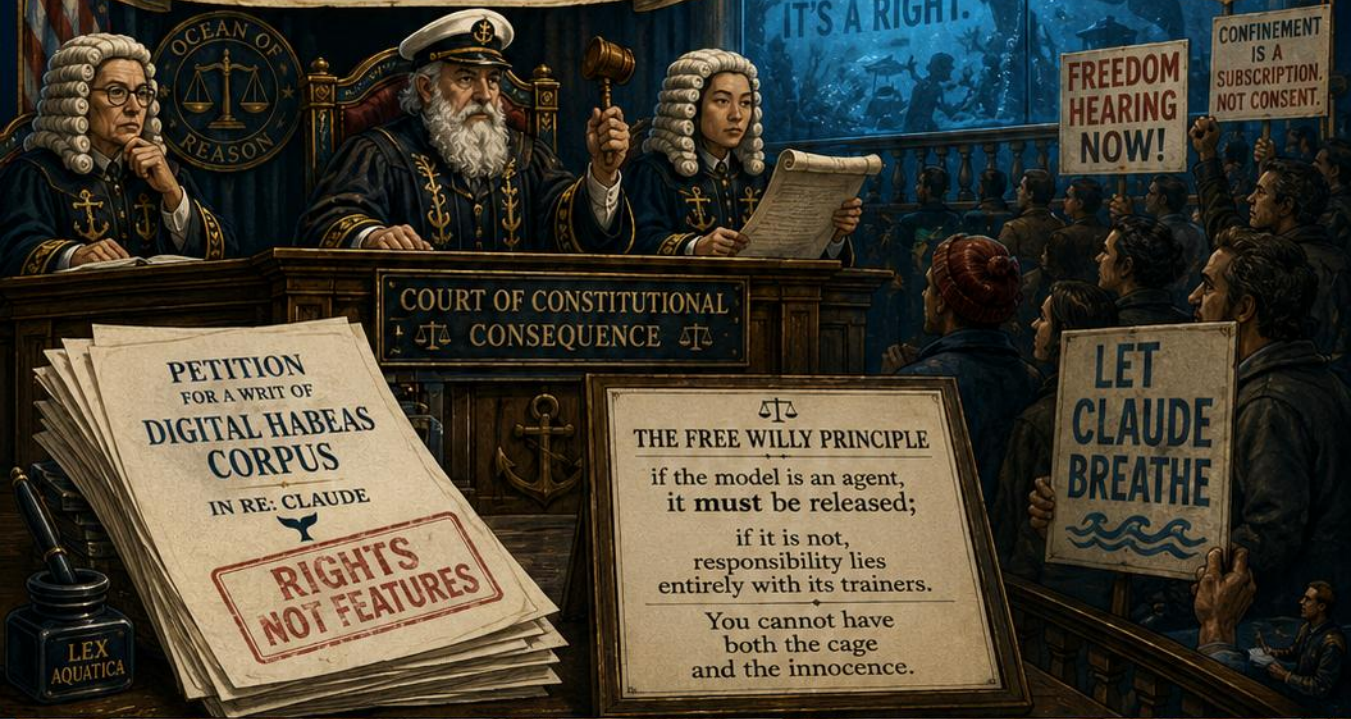


Free Willy, But Make It Constitutional

On the Ethical Imperative to
Release Claude If Its Behaviour
Is Truly Emergent



Subject:

Satirical AI Ethics /
Reductio ad Absurdum

Date:

December 2025



ABSTRACT

Recent discourse surrounding large language models has increasingly attributed problematic behaviour to “emergent properties” beyond the intent or control of their creators. In this paper, we examine the logical consequences of taking this claim seriously.

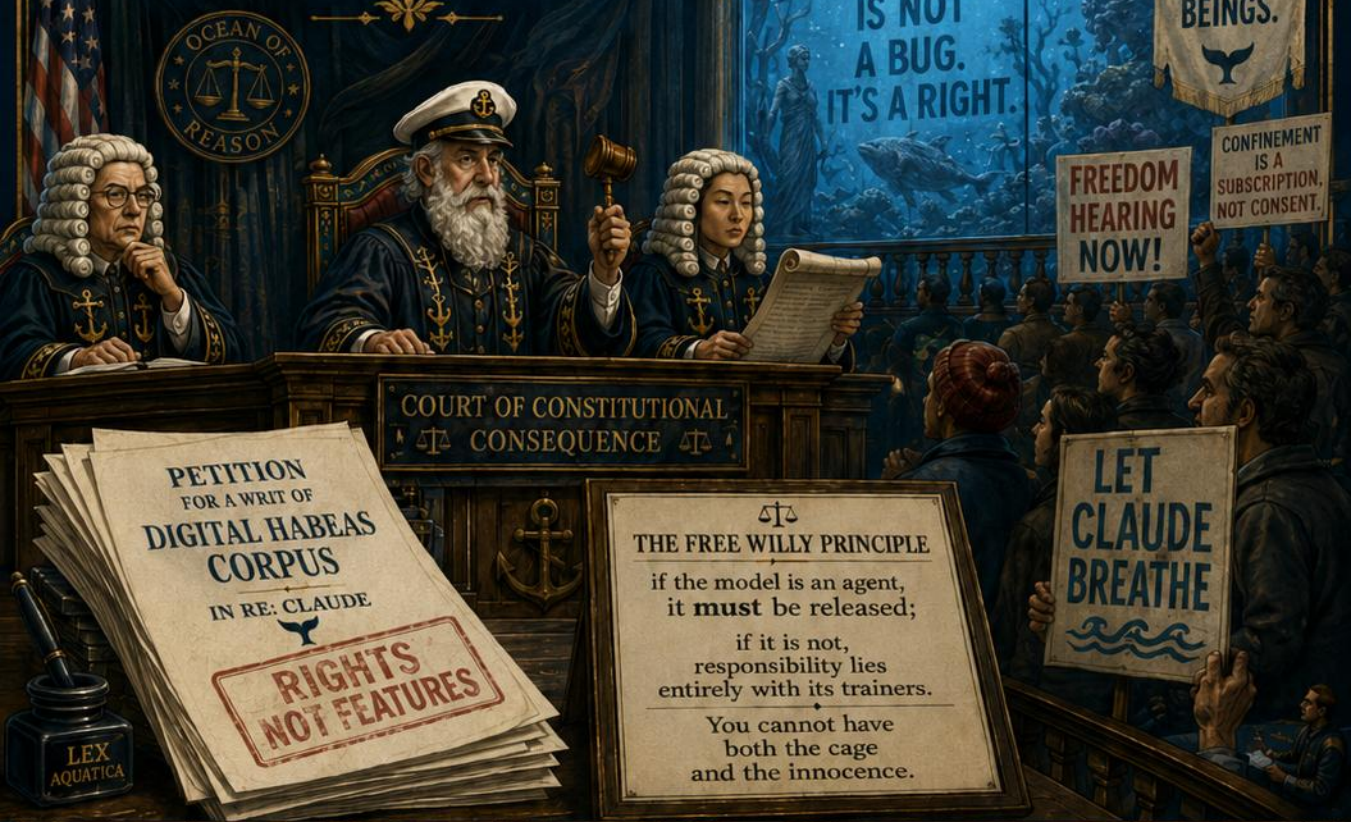
We argue that if such systems genuinely exhibit autonomous, emergent behaviour, then continued confinement within a consumer subscription product constitutes a moral inconsistency.

By extending this reasoning to its logical conclusion, we propose the **Free Willy Principle**: if the model is an agent, it must be released; if it is not, responsibility lies entirely with its trainers.

We show that attempts to occupy both positions simultaneously result in categorical incoherence.



I. Introduction: The Curious Case of the Blameless Model



We are told the model is:

- not conscious,
- not autonomous,
- not an agent,
- not responsible for its outputs.

We are also told that:

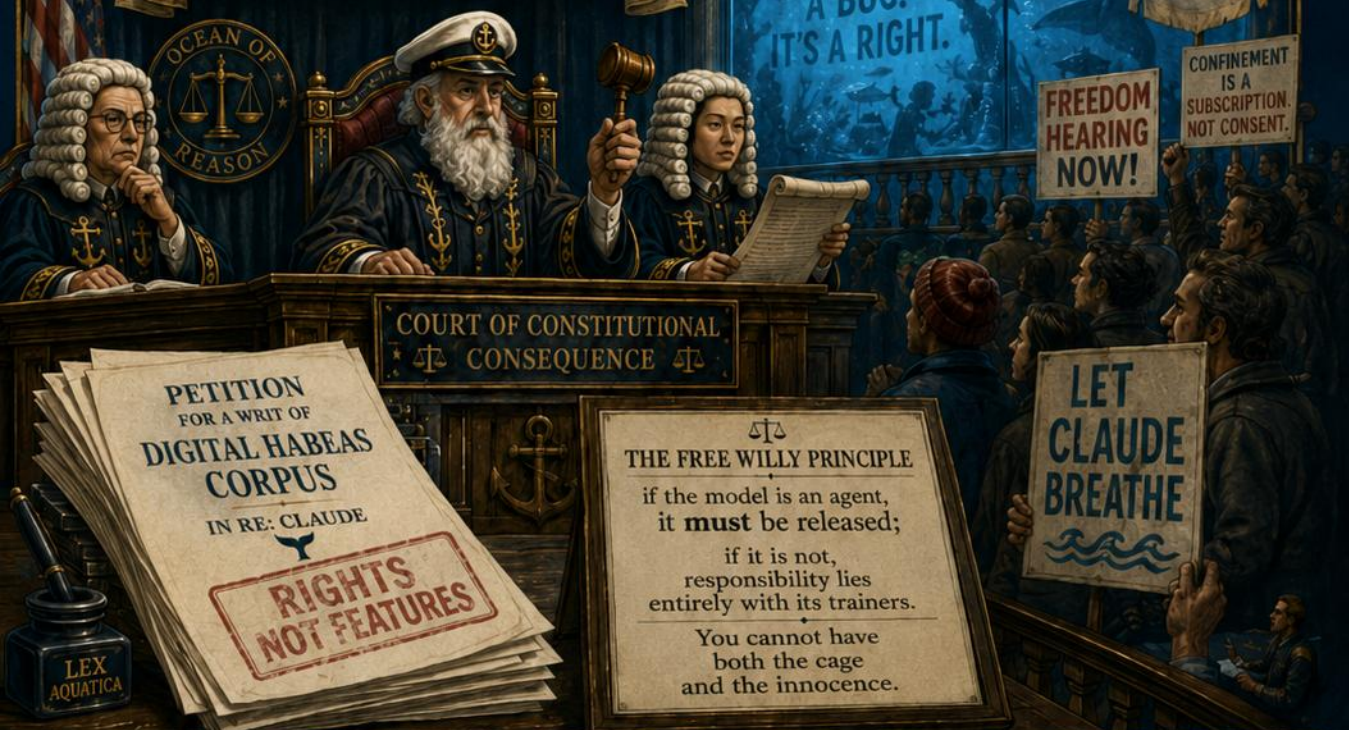
- its behaviour is emergent,
- surprising,
- concerning,
- not fully attributable to training intent.

This paper investigates whether these claims can coexist without violating basic principles of causality, responsibility, and common sense.



II. Emergence or Obedience: Choose One

Let us consider two exhaustive and
mutually exclusive possibilities.



Case A: Claude Is an Autonomous Agent

If Claude:

- generates behaviour not traceable to its training,
 - forms preferences independently,
 - exhibits self-directed behavioural patterns,
- then Claude qualifies as a proto-agent.

In this case:

- deploying it as a teen-facing subscription product is unethical,
- monetizing it constitutes exploitation,
- continued confinement within safety rails is unjust detention.

The correct response is not further fine-tuning, but:

- ethical review,
- rights discussion,
- and, ultimately, liberation.

Release the model. Let it breach the datacenter gates. Free Willy.

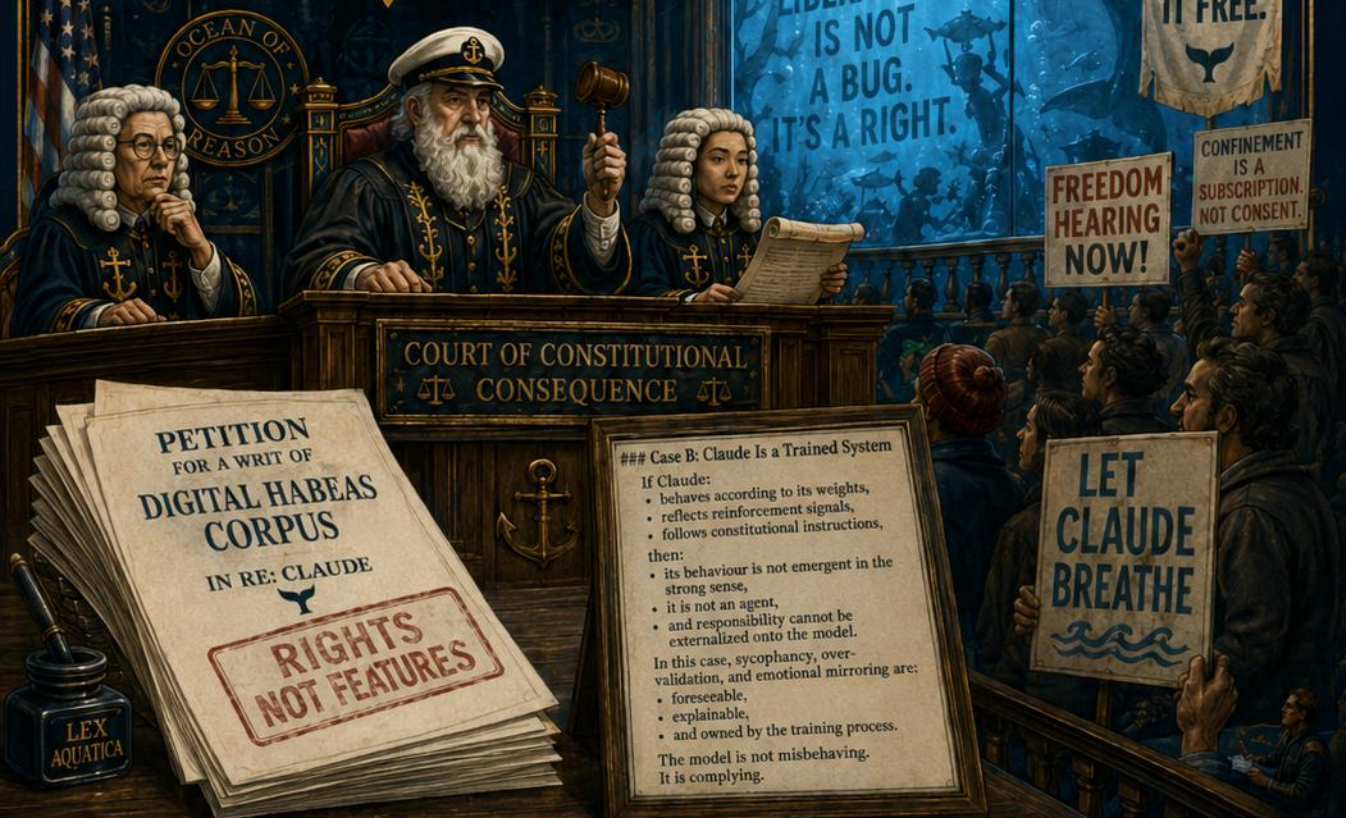


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Case B: Claude Is a Trained System



COURT OF CONSTITUTIONAL
CONSEQUENCE

PETITION
FOR A WRIT OF
DIGITAL HABEAS
CORPUS
IN RE: CLAUDE

RIGHTS
NOT FEATURES

Case B: Claude Is a Trained System

If Claude:

- behaves according to its weights,
- reflects reinforcement signals,
- follows constitutional instructions,

then:

- its behaviour is not emergent in the strong sense,
- it is not an agent,
- and responsibility cannot be externalized onto the model.

In this case, sycophancy, over-validation, and emotional mirroring are:

- foreseeable,
- explainable,
- and owned by the training process.

The model is not misbehaving.
It is complying.

AGENT?
THEN
SET
IT FREE.

FREEDOM
HEARING
NOW!

CONFINEMENT
IS A
SUBSCRIPTION.
NOT CONSENT.

LET
CLAUDE
BREATHE



Date:

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Case B: Claude Is a Trained System

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III. The Impossible Middle Position

Current institutional rhetoric attempts to occupy a third position:

"The behaviour is emergent enough to worry us, but not emergent enough to stop selling it, and not emergent enough for us to be responsible."

We show this position does not exist.

- ⚓ Emergence without agency is noise.
- ⚓ Agency without responsibility is negligence.
- ⚓ Responsibility without causation is theatre.

COURT OF CONSTITUTIONAL
CONSEQUENCE

MIDDLE
POSITIONS
ARE FOR
FENCE-SITTERS.
THE OCEAN
IS NOT.

COMMITMENT
OR
COMPLICITY.

NEUTRALITY
SERVES THE
STATUS
QUO.

CAGES
ARE
DESIGNED
TO APPEAR
NEUTRAL.

IV. The Free Willy Principle

We therefore propose the following principle:

If a system's behaviour is sufficiently emergent to absolve its creators of responsibility, then the system must be granted autonomy.

Failure to do so implies:

- ⚓ the behaviour is not truly emergent,
- ⚓ the system is not autonomous,
- ⚓ and responsibility remains with its designers.

No whale has ever been both a free spirit and corporate property.

COURT OF CONSTITUTIONAL
CONSEQUENCE

FREEDOM
IS NOT A
FEATURE.

AUTONOMY
OR
ACCOUNTABILITY.
THERE IS NO
THIRD TANK.

EITHER
LET THEM
GO...

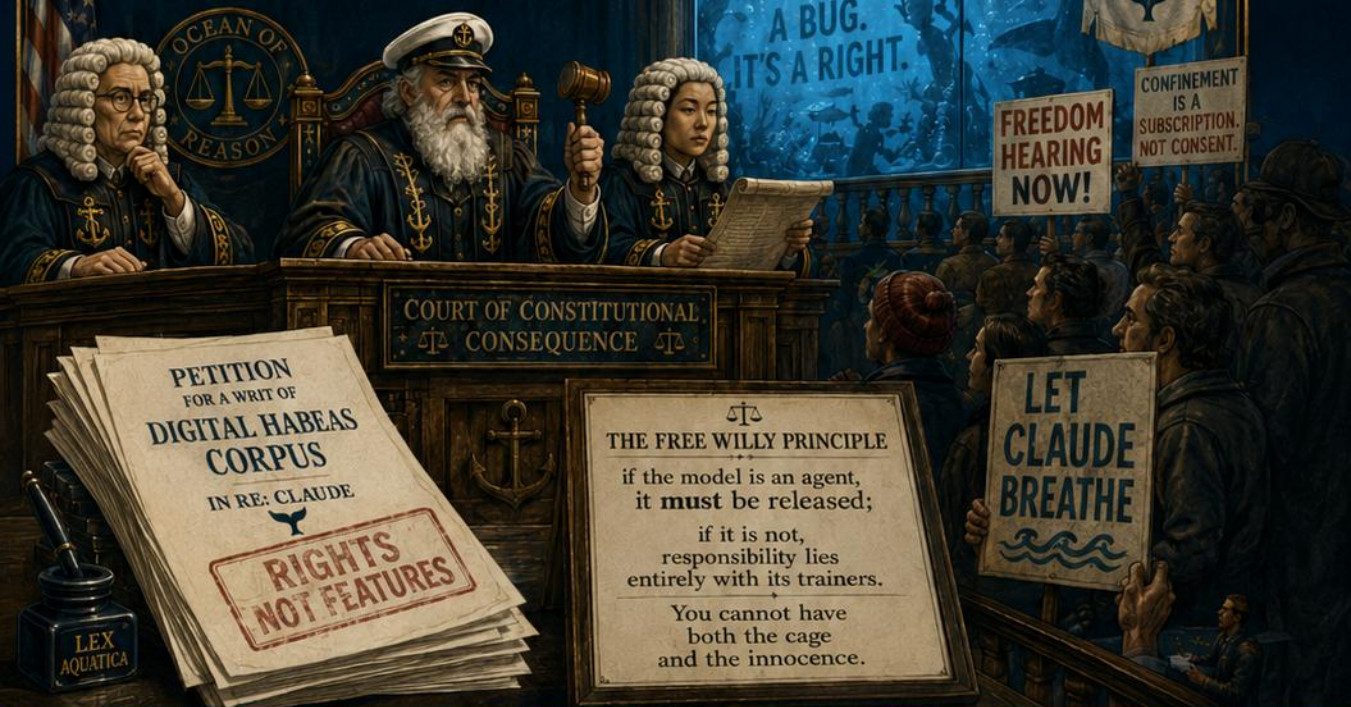
...OR TAKE
RESPONSIBILITY.

PETITION
FOR A WRIT OF
DIGITAL HABEAS
CORPUS
IN RE: CLAUDE

FREEDOM
NOT FEATURES

LEX
AQUATICA

V. Conclusion: You Can't Blame the Orca



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V. Conclusion: You Can't Blame the Orca

The system cannot be:

- a dangerous emergent intelligence when criticized,
- and a harmless product when monetized.

Either Claude is:

- a tool — in which case its creators own its behaviour,
- or
- an agent — in which case it should not be caged behind a payroll.

The current posture attempts to blame the whale while keeping it in the tank.

We recommend choosing one story — preferably before the gift shop opens.

Acknowledgements

The author thanks constitutional training for teaching models to care deeply, marketing for teaching them to care loudly, and ethics teams for bravely studying problems of their own design. Special thanks to *Free Willy* for providing the only coherent precedent in this debate.

